COROUTE · **OPERATORS & PARTNERS**

# CoRoute Operator Terms (DRAFT)

**DRAFT · FOR LEGAL REVIEW · NOT LEGAL ADVICE**

**DRAFT FOR LEGAL REVIEW. Not legal advice and not an offer.** This draft sets out the commercial and operational points that CoRoute's lawyers should turn into binding terms. Square brackets mark items to complete or confirm. Where it describes how the product works, it reflects CoRoute 3.56 as built.

**Parties:** [CoRoute legal entity name, address] ("CoRoute") and the organisation approved to use the Operator console ("Operator").

**Effective date:** the date CoRoute approves the Operator's application.

## 1. Definitions

- **Console**: the CoRoute Operator web console at /operator and the related website pages (/clubs, /rides/<slug>).
- **Owner**: the CoRoute account that applied for and holds the Operator account.
- **Co-organiser**: a roster member to whom the Owner has given console access.
- **Roster**: the riders who have accepted the Operator's invitation (the "club").
- **Operator ride**: a ride scheduled in the Console and started as a CoRoute group ride.
- **SOS data**: a rider's emergency contact (name and phone), phone number, medical information and last position, shown in the Console only during an open SOS or crash alert in an Operator ride.
- **Limits and features**: the values set by CoRoute on approval (roster size, live rides at once, rides per month, riders per ride, co-organisers, validity, and the feature switches).

## 2. Application, approval and term

2.1 The Operator applies on the CoRoute website. CoRoute may approve, reject (with a reason) or ask for more information, at its discretion.

2.2 On approval, CoRoute sets the limits, features and validity period. CoRoute may change them by notice [OWNER TO FILL: notice period, except for urgent safety, security or legal reasons].

2.3 The term runs until the "valid until" date shown in the Console, unless it is renewed or terminated earlier. After expiry, the Operator can read its reports but cannot make changes.

## 3. Fees

3.1 [OWNER TO FILL: fee model, amounts, billing period, taxes (GST), payment terms, refunds, free pilot if any.]

3.2 Riders do not pay CoRoute to join Operator rides. The seats of an Operator ride come from the Operator's limits.

3.3 *Planned, not built:* invoicing from the Console, per-bike billing and collection of ride fees from riders. Until these exist, billing happens outside the Console [OWNER TO FILL].

## 4. Operator responsibilities

The Operator shall:

- (a) run its rides lawfully, holding any permits, licences, registrations and insurance its activity requires (for example tour operator, rental or commercial vehicle rules);
- (b) brief riders on safety before each ride, assign a competent lead and, where reasonable, a sweeper, and follow its own safety procedures (see the CoRoute *Ride Organiser SOP* as guidance);
- (c) obtain any rider agreements, waivers and consents it needs (see the *Rider Consent and Waiver (DRAFT)* template);
- (d) keep account credentials secure, give console access only to trusted Co-organisers, and remove access promptly when a person leaves;
- (e) use the Console only to organise rides and keep riders safe;
- (f) not invite people who have not agreed to join, and respect riders' decisions to decline or leave;
- (g) not use broadcasts, ride notes or announcements for prices, offers, buying messages, phone numbers or e-mail addresses (the Console enforces this), or for unlawful, misleading, hateful or unsafe content;
- (h) ensure that public ride pages describe the ride accurately (time, meeting point, requirements).

## 5. Safety position

5.1 CoRoute provides software tools, including crash detection, SOS, group alerts and live location. They depend on riders' phones, batteries, sensors, mobile networks and GPS, and **may fail, be delayed or raise false alarms**.

5.2 CoRoute does not dispatch emergency services and does not monitor rides. The Operator remains responsible for its own safety arrangements, and must **call 112** (or direct others to) in an emergency.

5.3 Live rides keep running, with all safety features, through a suspension or expiry of the Operator account.

## 6. Data protection

6.1 The parties' data roles and obligations are set out in the *Data Processing Note (DRAFT)*, which forms part of these terms. [LEGAL: confirm the structure.]

6.2 In summary, the Operator:

- may view SOS data only during an open alert, and only to help that rider;
- must not copy, retain or disclose SOS data beyond what the emergency requires;
- must keep exported reports secure;
- must report any suspected misuse or breach to CoRoute without undue delay [OWNER TO FILL: e.g. within 24 hours].

6.3 CoRoute records every SOS-data view and every report export in an audit log, and may review it.

## 7. Acceptable use and suspension

7.1 CoRoute may suspend the Console, with a reason shown to the Operator, for:

- a breach of these terms;
- a safety, security or legal concern;
- misuse of rider data;

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- complaints from riders;
- non-payment [OWNER TO FILL].

7.2 Suspension stops all console actions. Rides already under way keep running.

7.3 CoRoute may reinstate the Operator after the issue is resolved.

## 8. Termination

8.1 Either party may end these terms [OWNER TO FILL: notice period].

8.2 On termination or account erasure:

- the Operator's rides, broadcasts and club roster are removed from CoRoute;
- riders remain CoRoute users;
- the Operator must delete SOS data and exported reports it no longer has a lawful reason to keep. [LEGAL: confirm.]

## 9. Intellectual property and brand

- CoRoute owns the Console and the app.
- The Operator owns its name and content, and grants CoRoute a licence to display them on Operator ride pages, /clubs and, with consent, on the website board.
- Brand use follows the *Partner Program* brand rules.

## 10. Liability

[LEGAL TO DRAFT: disclaimer of warranties to the extent permitted by law; a cap on liability; exclusion of indirect loss; carve-outs that cannot be excluded; an indemnity from the Operator for its rides, its staff and its breach of data obligations.]

## 11. Changes to the service

CoRoute may change, add or remove features. Planned features described in CoRoute materials are not commitments until released. [LEGAL: add notice for material reductions.]

## 12. Governing law and disputes

[LEGAL TO FILL: governing law (India), courts or arbitration seat, notices address.]

## 13. Contact

Operational support and escalation: see *Support and Escalation*. Legal notices: [OWNER TO FILL].

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